

SUMMARY OF INCIDENT

INVESTIGATOR: Det. Robert Krish	CLASSIFICATION: Abuse	C.C.R.B. No. 4922/84
INCIDENT: DATE & TIME 0115 10/8/84	REPORTED TO C.C.R.B.: DATE & TIME 0145 10/8/84	

PERSONS TO BE NOTIFIED:

	NAME	STREET	CITY/BOROUGH	STATE	ZIP CODE
COMPLAINANT	§ 87(2)(b)				
VICTIM (If Not Compl)					
OTHER					
ATTY					

WHO DOES ATTORNEY REPRESENT?

SUBJECT MEMBERS COMPLAINED OF:

RANK	NAME	SHIELD NO.	CMD.	TAX REG. NO.	SERVICE TIME	ASSIGNMENT	RACE	ON DUTY (YES OR NC)
	PO Gary Carlo	15253	43	873488	6	Ptl	W	Yes
	PO Michael Pilecki	2404	43	880208	2	Ptl	W	Yes

PREVIOUS C.C.R.B. CASES:

NAME	C.C.R.B. NO.	DATE	CATEGORY	DISPOSITION
§ 87(2)(b)	N/P			
PO Carlo	2851	11/30/81	Force	Compl. Uncoop.
	2604	9/3/82	F/A	Concil.

COMMUNICATIONS TO BE ANSWERED:

☐ P.C. Brief	☐ Mayor's Office	☐ Othc. (specify) _____
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USE OTHER SIDE IF ADDITIONAL SPACE IS NEEDED

Misc. 830N Rev. 12/79

REPORT OF INVESTIGATION OF CIVILIAN COMPLAINT

SHEET "A"

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Investigator: Det. Robert Krish		Supervisor: Capt. Robert Cea	
Date of Report: 1/29/85	C.C.R.B. No. 4922/85	Classification: Abuse	
Date and Time of Incident: 0115 10/8/84		Date and Time Reported to C.C.R.B. 0145 10/8/84	
Location of Incident: § 87(2)(b)		Precinct: 43	

ALLEGATIONS

ALLEGATIONS	SOURCE	APPENDIX ENCLOSURE NO.
A Officers did push their way into complainant's apartment, search it with flashlights and questioned her § 87(2)(b) son;	UF245	1
B Officers did refuse to give complainant their shield numbers and slammed her door.	UF245	1

COMPLAINANT(S)/VICTIM(S)

NAME	ADDRESS	SOURCE	APPENDIX ENCLOSURE NO.
§ 87(2)(b)		UF245	1

WITNESSES (For Complainants & Members of Department)

NAME	ADDRESS	SOURCE	APPENDIX ENCLOSURE NO.
Sgt. James Moriarty	Sh. #1115, 43 Pct.	Int.	6

SUBJECT OFFICER(S)

RANK	NAME	SHIELD NO.	TAX REG. NO.	COMMAND
PO	Gary Carlo	15253	873488	43
PO	Michael Pilecki	2404	880208	43

Misc. 830-A

SUMMARY OF STATEMENT OF INCIDENT BY COMPLAINANT(S)

C.C.R.B. No. 4922/84

Complainant alleges the officers barged into her apartment, searched it with flashlights and questioned her § 87(2)(b) son. The officers refused to give her their shield numbers and slammed the door when they left.

BACKGROUND INFORMATION

On the date of this incident the subject officers responded to the complainant's apartment on a call of children screaming. They pushed their way into the apartment and made a cursory search. They left shortly thereafter and filed a report of child abuse with Bureau of Child Welfare.

Both officers were assigned to RMP Sectors JKM in the 43 Pct. and performed tour 12x8.

ALLEGATION (A)

SUMMARY OF INVESTIGATION

C.C.R.B. No. 4922/84

Complainant alleges the officers pushed their way into her apartment, searched it with flashlights and questioned her § 87(2)(b) son.
(Enc. 1, 3)

§ 87(2)(g)

Both officers admitted pushing their way into complainant's apartment because they heard children screaming. They felt an immediate response was required, not knowing if the children were injured. There were no lights and they looked around with their flashlights and found the apartment in a shambles. PO Pilecki found an iron turned on and buried beneath a pile of clothing, and he turned it off to prevent a fire. PO Carlo questioned one of the children to determine what was going on. He stated his mother had beaten his younger brother. The officers then left the apartment.

§ 87(2)(g)

(Enc. 4, 5)

ANALYSIS/FINDING (Omit Recommendations)

§ 87(2)(g)

ALLEGATION "A" EXONERATED

Complainant alleges the officers refused to give her their shield numbers, pointed their finger in her face and slammed the door when they left.
(Enc. 1, 3)

§ 87(2)(g)

PO Carlo denied pointing his finger in the complainant's face, although he did warn her about abusing the children. He gave her every opportunity to copy their shield numbers and names and denied slamming the door. Specifically, he pointed to his (Enc. 4) name tag and shield, as did his partner but the complainant ignored him.

§ 87(2)(g)

(Enc. 5)

ANALYSIS/FINDING (Omit Recommendations)

§ 87(2)(g)

ALLEGATION "B" UNSUBSTANTIATED